

Tamil Nadu Pawnbrokers and Debt Relief Laws (Amendment) Act, 1980

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State of Tamilnadu- Act

Tamil Nadu Pawnbrokers and Debt Relief Laws (Amendment) Act, 1980

TAMILNADU

India

Tamil Nadu Pawnbrokers and Debt Relief Laws (Amendment) Act, 1980

Act 35 of 1980

Published on 13 October 1980

Commenced on 13 October 1980

[This is the version of this document from 13 October 1980.]

[Note: The original publication document is not available and this content could not be verified.]

Tamil Nadu Pawnbrokers and Debt Relief Laws (Amendment) Act, 1980

(Tamil Nadu Act

35 of 1980

)

Statement of Objects and Reasons - Tamil Nadu Pawnbrokers and Debt Relief Laws (Amendment) Act, 1980 (Tamil Nadu Act

No. 35 of 1980

). - For Statement of Objects and Reasons, please see Part IV - Section 1, Pages 154-155 of the Tamil Nadu Government Gazette Extraordinary, dated the 16th July 1980.

Received the assent of the President on the 13th October 1980 and first published in the Tamil Nadu Government Gazette Extraordinary, dated the 23rd October 1980.

An Act further to amend the Tamil Nadu Pawnbrokers Act and the Debt Relief Laws in force in the State of Tamil Nadu.

Be it enacted by the Legislature of the State of Tamil Nadu in the Thirty-first Year of the Republic of India as follows: -

1.

Short title and commencement.

(1)

This Act may be called the Tamil Nadu Pawnbrokers and Debt Relief Laws (Amendment) Act, 1980.

(2)

Clauses (1) and (3) of section 3 shall be deemed to have come into force on the 13th day of June 1980 and the rest of this Act shall come into force at once.

2.

[The amendment made by this section has already been incorporated in the principal Act, namely, the Tamil Nadu Pawnbrokers Act, 1943 (Tamil Nadu Act XXIII of 1943)].

3.

[The amendment made by this section has already been incorporated in the principal Act, namely, the Tamil Nadu Debt Relief Act, 1976 (Presidents Act

31 of 1976

).]

4.

[The amendment made by this section has already been incorporated in the principal Act, namely, the Tamil Nadu Debt Relief Act, 1979 (Tamil Nadu Act

40 of 1979

).]

5.

[The amendment made by this section has already been incorporated in the principal Act, namely, the Tamil Nadu Debt Relief Act, 1980 (Tamil Nadu Act

13 of 1980

.)].

6.

Stay of certain proceedings.

(1)

Notwithstanding anything contained in any law for the time being in force, every proceeding for the execution of a decree (other than the making of an application for the execution of a decree) including proceedings consequent on orders or decrees made in appeals, revision petitions or applications for review, for the recovery of any amount of debt (including interest, if any) which has been scaled down in accordance with the provisions of the Tamil Nadu Debt Relief Act, 1979 (Tamil Nadu Act

40 of 1979

) (hereafter in this section referred to as the said Act) pending on the date of publication of this Act in the Tamil Nadu Government Gazette (hereafter in this section referred to as the said date), against any person who is a debtor within the meaning of the said Act, shall, subject to the next succeeding sub-section, stand stayed until the expiry of six months from the said date and where an application has been made by the judgement-debtor under sub-section (2) of section 10-A, the said Act, until the final disposal of the said application:

Provided that nothing in this sub-section shall apply to the sale, in respect of any such debt, of -

(i)

any movable property held and concluded before the said date;

(ii)

any immovable property confirmed before the said date:

Provided further that, nothing in this sub-section shall apply to any proceeding in respect of any debt secured by any mortgage of the description referred to in sub-section (1) of section 9 of the said Act.

(2)

Nothing contained in this section shall be deemed to invalidate any proceeding in which the order passed has been executed or satisfied in full before the said date.

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